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Meeting Afzal

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The more I read about Afzal's case, the more I am convinced that he did not have adequate and effective legal representation at the trial which led to his conviction and the imposition of a death sentence. As a practising lawyer in the evening of my career, I am appalled that any human being could be sent to death without being given an opportunity to be heard. This was meant to be a civilized nation, with the guaranteed fundamental right to state legal aid for the indigent and those otherwise unable to access legal service.

The right to legal aid commences with the arrest and continues through the trial and all appeals. Afzal was denied this right. Until he made the 'confession'— in full media glare and surrounded by police—he had no lawyer.[1] The confession was later discarded by the Supreme Court as being contrary to law, but by that time the damage was already done, a damage that has not been undone till today. The NDA government was in power when the attack on Parliament took place and the arrest was made. They managed to whip up near mass hysteria about the nation being in danger due to the attack on Parliament. Afzal had no one to turn to. He did not even see his family until six months into the trial. When he did see them, it was for a few minutes in court. There was no one to mobilize a lawyer for him.

At the trial, Afzal named four lawyers whom he wished to have defending him. The judge, S.N. Dhingra, records that all four refused, but there is no evidence to show that they did. Indeed, the evidence actually suggests that they were never approached by the judge and asked if they would represent Afzal. This is again the most blatant denial of the right to representation, a denial which ultimately led to a death sentence being imposed.

At one hearing in court, the judge said that, as Afzal had no lawyer, Ms Seema Gulati would be assigned to him as his lawyer, a woman he knew nothing about. He never met her, except during the trial in court. On being